VANCOUVER PUBLIC SCHOOLS

VPS

Legal Department

Notice

Updates to the following attached procedures have been approved by Superintendent, Jeff Snell, and are scheduled to be posted online at www.vansd.org

Procedure 2110, Multilingual Education Program

Posted online on August 31, 2024

Procedure 2265, Choice Schools and Programs

Posted online on August 31, 2024

Procedure 3131, Resident Students, District Attendance Areas and Intra-District Boundary Exceptions

Posted online on August 31, 2024

Procedure 3224, Student Dress

Posted online on August 31, 2024

Procedure – ~~Transitional Bilingual Instruction~~Multilingual Education Program

The following procedures are instituted for purposes of implementing a ~~transitional bilingual instruction~~multilingual education program. The district's multilingual education program includes a transitional bilingual instruction program and dual language programming, as described below.

I. Transitional Bilingual Instruction Program

A transitional bilingual instruction program, as defined by state law, means a system of instruction which uses two (2) languages, one (1) of which is English, to build upon and expand language skills to enable the student to achieve competency in English. In those cases where the use of two (2) languages is not practicable, appropriate instruction for English language learners may be provided primarily in English.

The district will provide English language learners appropriate core academic instruction in addition to language instruction. The district's transitional bilingual instruction program is intended to supplement core academic instruction.

A.~~I.~~ Program Application and Description

Annually, and prior to August 1 of each year, the district will submit an application to the Office of Superintendent of Public Instruction (OSPI) requesting funding to support its transitional bilingual instruction program. In its application, the district will provide a description of its research-based program models including staffing and implementation strategies.

B.~~II.~~ Eligibility

At the time of registration, the parents/guardians of each student will be asked to complete a home language survey, which identifies the child's primary language. Students that indicate on the home language survey a primary language other than English will be assessed within ten (10) school days of enrollment and attendance using the Washington Language Proficiency Placement Test to determine eligibility for the transitional bilingual instruction program. Any student who scores a level one (1) (beginning/advanced beginning), two (2) (intermediate) or three (3) (advanced) will be eligible for the program. Students who score at level four (4) (transitional) are not eligible for the program. Staff will determine the appropriate instructional program for each eligible student.

C.~~III.~~ Parent/Guardian Notification

1~~A~~. Parents/guardians will be notified, in writing, of their child's initial eligibility and notified annually of their child's continuing eligibility for the transitional bilingual instruction program. At a minimum, the parent/guardian notification will contain:

a. How the child's eligibility was determined and the child's current level of English proficiency;

b. A description of the district's program and how it will meet the child's educational needs;

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c. The specific exit requirements for the program; and

d. Information on the parent's right to refuse services.

2~~B~~. Communication with parents/guardians should be provided, when feasible, in the parents' primary language.

D.~~IV.~~ Continued Eligibility/Annual Assessment

Each eligible English language learner must be assessed annually, using the state-approved language proficiency test to determine continued eligibility. Students remain eligible until they reach level four (4) (transitional) on the annual state-approved language proficiency test.

E.~~V.~~ Expected Graduation Year

For eligible English language learners who require extended time to meet high school graduation requirements, the district may set an expected graduation year beyond the typical four (4) years of high school or through the school year in which a student turns twenty-one (21).

F.~~VI.~~ Record Keeping and Documentation

The district will maintain records of eligible students and comply with state reporting requirements. Original documents will be kept in the student's cumulative folder and copies will be kept in the program folder, if applicable. These documents include the home language survey, parent notification letters, parental waiver (if applicable), and language proficiency test assessment data.

G.~~VII.~~ Communication Plan

The district will develop and provide to parents/guardians, district staff and interested stakeholders a user friendly description of the transitional bilingual instruction program offered in the district. The description will include the process for identifying and serving English language learners and provide contact information for the district's transitional bilingual instruction program manager.

II. Dual Language Programming

Dual language is an instructional model that provides content, language, and literacy instruction in English and a partner language. The goals of the district's dual language programming are to help students: become bilingual and biliterate, developing high levels of proficiency in two languages; perform at or above grade level in academic areas in both languages; and demonstrate positive cross-cultural attitudes and behaviors.

Consistent with this procedure, the district will prioritize placement of multilingual/English learners in its dual language programming and will provide participating multilingual/English learners appropriate core academic instruction in addition to language instruction. English dominant students are invited to participate in dual language programming as an opportunity to become bilingual and biliterate while learning the general education curriculum.

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A. Current List of Dual Language Programming

Dual Language School	Dual Language Programs
Ruth Bader Ginsburg (RBG) (Spanish)	Elementary School: Sarah J. Anderson (Spanish) Harney (Spanish) Martin Luther King, Jr. (Spanish) Eleanor Roosevelt (Spanish) Ben Franklin (Mandarin) Middle School: Gaiser Middle School (Spanish) McLoughlin (Spanish) Jason Lee (Mandarin) High School Fort Vancouver (Spanish) Columbia River (Mandarin)

B. District Commitments for Dual Language Programming

The District will:

1. Offer dual language programming at the elementary and secondary levels in order to meet the learning needs of multilingual learners.

2. Use the district's Dual Language Framework to guide programming and instructional practices.

3. Solicit input from dual language programming leadership and staff when considering instructional materials for dual language programming, including translations of instructional materials written in English. The district will strive to identify authentic language translations, when available.

4. Annually assess, by means of the state approved test, improvement in English language proficiency for each eligible English language learner participating in the district's dual language programming.

5. Provide for continuous improvement and evaluation of the district's dual language programming to determine its effectiveness.

6. Actively inform families of dual language programming opportunities for multilingual and English speaking students.

7. Communicate with families of students who are English language learners in a language they can understand in accordance with Policy 4218, Language Access.

8. Actively recruit and retain bilingual, biliterate certificated and classified staff to serve in dual language schools and programs.

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C. Dual Language Programming Admission Process

1. The district will establish an enrollment cap for each dual language school and program based on the learning needs of multilingual learners, staffing, and facility capacity. For each class, up to sixty percent (60%) of the enrollment slots will be designated for multilingual/English learners whose dominant language is the partner language, and the remaining enrollment slots will be open to all applicants, including English dominant students.

2. The district will admit students to each dual language school and program up to the established enrollment cap as outlined in this procedure. If the number of applicants for a school or program exceeds the number of spaces available, a centralized lottery determines admissions and generates waitlists.

3. Prior to the application and lottery process, the district will distribute to students and parents/guardians information regarding:

    a. The district's dual language programming offerings along with an invitation to apply;

    b. The deadline for application;

    c. The enrollment cap for each dual language school and program; and

    d. Families must attend a dual language presentation or watch the dual language information video.

4. Applications submitted by the published deadline will be subject to the following process:

    a. A common application will be used for dual language schools and programs.

    b. All students who submit a completed application are eligible for admission. The district will admit students to each dual language school and program up to the established enrollment cap. If the number of applicants for a dual language school or program exceeds the number of spaces available, all applicants will be entered into the centralized lottery.

    c. The lottery will determine admissions and generate waitlists as follows:

        i. There will be separate lotteries for the enrollment slots designated for multilingual/English learners whose dominant language is the partner language and for the enrollment slots open to all applicants.

        ii. Lottery for multilingual/English learners: Students who reside in the school's attendance area where the program is located will have first priority for enrollment. Siblings of students currently enrolled in a dual language program will have second priority for enrollment. The lottery for any remaining enrollment slots designated for multilingual/English learners will randomly select students for admission using the weighted lottery allocation for each neighborhood elementary school.

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iii. Lottery open to all applicants: Students who reside in the school's attendance area where the program is located will have first priority for enrollment. Siblings of students currently enrolled in a dual language program will have second priority for enrollment. The lottery for any remaining enrollment slots open to all applicants, including English dominant students, will randomly select students for admission using the weighted lottery allocation for each neighborhood elementary school.

iv. Lottery for Ruth Bader Ginsburg (RBG): RBG will follow the same lottery processes outlined above, except that RBG does not have a school attendance area. There will be separate lotteries for the RBG enrollment slots designated for multilingual/English learners whose dominant language is the partner language and for the RBG enrollment slots open to all applicants. Siblings of students currently enrolled in RBG will have first priority for enrollment. The lottery for any remaining enrollment slots will randomly select students for admission using the weighted lottery allocation for each neighborhood elementary school.

d. If there are more applicants than spaces available, in-district students will be given priority. Once a student, whether in-district or nonresident, is accepted, the student will be automatically accepted for the remaining years of the dual language school or program. Students accepted into elementary dual language programming will be accepted into the district's secondary dual language programming; and

e. Nonresident students must submit a boundary exception to attend a dual language school or program. The boundary exception shall be granted so long as the student remains in dual language programming and meets the other requirements of Procedure 3141, Nonresident Students.

5. The admission process is open to all students; however, students wishing to enroll in dual language programming after kindergarten must demonstrate language proficiency in the partner language prior to admission into dual language programming.

6. Students who enroll in a dual language school or program are expected to make a minimum one-year commitment and maintain regular attendance. A student whose record of attendance (including absences and tardiness) has a significant negative effect on the student's education in the partner language may be considered for removal from dual language programming in accordance with the boundary exception revocation procedures described in Procedure 3131, Resident Students, District Attendance Areas, and Intra-District Boundary Exceptions, or Procedure 3141, Nonresident Students.

D. Appeal

A student who has not been admitted to a dual language school or program may request in writing a reconsideration of their application. The request for reconsideration shall be directed to the appropriate executive director and then appealed to the superintendent/designee.

E. Dual Language Programming Transportation

1. For students attending Ruth Bader Ginsburg Elementary School, transportation will be provided from the student's bus stop to Ruth Bader Ginsburg.

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2. For students attending all other dual language programs, transportation will be provided only for students who reside within the school attendance area. No transportation will be provided for students who reside outside of the school attendance area, including nonresident students.

F. New Dual Language Programs at Elementary and Secondary Levels

Vancouver Public Schools' staff members may make a recommendation for a new dual language program at the elementary and secondary level to the superintendent or designee. The following information about the proposed dual language program shall be submitted and considered:

1. Connection to the overall district or school vision;
2. How the district initiatives, priorities, and mission and vision statements will be promoted;
3. Application of the district's equity lens;
4. How district and Washington state academic content standards will be addressed;
5. Assurance of conformity to state and federal law;
6. Data indicating the need and how the dual language program will improve student learning;
7. Similar school/programs that have been researched;
8. Proposed sequence of identified courses;
9. Proposed enrollment capacity;
10. Expected student outcomes;
11. Staff and advisory committee members;
12. Proposed timeline for development and implementation;
13. Estimated ongoing costs; and
14. Impact on other schools, courses, or programs, i.e., would the adoption of the proposed dual language program replace other courses or affect them negatively?

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APPROVED:

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Dr. ~~Steven Webb~~Jeff Snell, Superintendent Date
Vancouver Public Schools

(DRAFT 07-29-24)

Procedure - Choice Schools and Programs

I. Definitions

A. The term "parent" as used in this procedure means a parent, guardian or a person having legal custody of a child. If the student is eighteen (18) years or older, or is legally emancipated, the procedures for the parent in this regulation may be exercised by the student.

B. The term "student transfer" is synonymous with "boundary exception."

C. The term "weighted lottery" means the use of school-level demographic information, such as socioeconomics of the school, percentage of multilingual learners, and total enrollment, to allocate a number of slots in a choice school for each neighborhood elementary school boundary.

II. Choice Schools and Programs Advisory Committee

Each choice school and program will establish an advisory committee to enhance its goals and visions. The committee will include parents, students, staff, community members, and administrators. The committee will provide input, links to the relevant professional community, and other information and opinions as requested by the principal or designee.

III. Current list of Choice Schools and Programs

Choice Schools

Vancouver School of Innovation, Technology and Art (VITA)
Ruth Bader Ginsburg (RBG)
Vancouver School of Arts and Academics (VSAA)
iTech Preparatory – STEM
Flex Academy
Heights Campus Programs (Virtual Learning Academy, Vancouver Home Connection, Open Doors)

Choice Programs

Columbia River
- International Baccalaureate (IB)

Fort Vancouver
- Medical Arts (Half-Day Morning)
- Culinary Arts (Half-Day Morning)
- Advanced Manufacturing (Half-Day Morning)
- Careers in Education (Half-Day Morning)

Hudson's Bay
- Construction Trades (Half-Day Morning)

Skyview
- Science, Math, Technology (SMT)

IV. Admission Process

A. The district will establish an enrollment cap for each choice school or program based on staffing and facility capacity.

B. The district will admit students to each choice school or program up to the established enrollment cap. If the number of applicants for a choice school or program exceeds the number of spaces available, a centralized lottery determines admissions and generates waitlists.

C. The application and lottery process is open to all students. Prior to the application and lottery process, the district will distribute to students and parents/guardians information regarding:

1. The offerings of each choice school or program along with an invitation to apply;

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2. The deadline for application; and

3. The enrollment cap for each choice school or program.

D. Applications submitted by the published deadline will be subject to the following process:

1. A common application will be used for all choice schools and programs. Each choice school and program may include additional, optional questions on the application regarding the applicant's relevant experiences, interests, and program preferences; however, these additional questions shall have no effect on admissions to the choice school or program.

2. All students who submit a completed application are eligible for admission. The district will admit students to each choice school or program up to the established enrollment cap. If the number of applicants exceeds the number of spaces available in a choice school or program, all applicants will be entered into the centralized lottery.

3. The lottery will determine admissions and generate waitlists as follows:

a) The lottery for sixth (6th) grade admission to iTech Preparatory (iTech) will randomly select students for admission using the weighted lottery allocation for each neighborhood elementary school. The lottery for seventh (7th) through twelfth (12th) grade admission will randomly select students from the applicant pool. Ten percent (10%) of the enrollment slots at iTech are reserved for students who reside in Battle Ground Public Schools.

b) The lottery for sixth (6th) grade admission to Vancouver School of Arts and Academics (VSAA) will randomly select students for admission using the weighted lottery allocation for each neighborhood elementary school. The lottery for seventh (7th) through twelfth (12th) grade admission will randomly select students from the applicant pool.

c) The lottery for Ruth Bader Ginsburg (RBG) will ~~prioritize students whose primary home language is Spanish (up to 60% of the total spaces per class). The lottery will randomly select other students for admission using the weighted lottery allocation for each neighborhood elementary school~~follow the process outlined in Procedure 2110, Multilingual Education Program.

d) The lottery for all other choice schools and programs will randomly select students for admission using the weighted lottery allocation for each neighborhood elementary school.

e) Students not admitted to the choice school or program will be placed on a waiting list and remain in the lottery pool. If space becomes available students will be selected from the pool based on the lottery process described above for the respective school or program. The waiting list and lottery pool will be in effect until the end of the school year. To reapply, the student must submit a new application each year.

4. If there are more applicants than spaces available, ~~in-district~~resident students will be given priority. Once a student, whether ~~in-district~~resident or nonresident, is accepted, the student is automatically accepted for the remaining years of the school or program; and

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5. Nonresident students must submit a boundary exception to attend a choice school or program. The boundary exception shall be granted so long as the student remains in the school or program and meets the other requirements of Procedure 3141, Nonresident Students.

E. Students who enroll in a choice school or program are expected to make a minimum one-year commitment to the school or program and maintain regular attendance. A student whose record of attendance (including absences and tardiness) has a significant negative effect on the student's education may be considered for removal from the choice school or program in accordance with the boundary exception revocation procedures described in Procedure 3131 (Resident Students, District Attendance Areas, and Intra-District Boundary Exceptions) or Procedure 3141 (Nonresident Students).~~Five (5) or more unexcused absences may be a basis for revoking an in-district student transfer and placing the student in the school served by the student's attendance area. If the student is a nonresident, the student transfer may be immediately revoked.~~

F. Students at VSAA, Skyview SMT, iTech, Flex Academy, VITA, RBG, and Columbia River IB must be enrolled as full-time students in their respective programs. Participation in a dual enrollment program, such as Running Start, does not preclude enrollment in a choice school or program.

G. A nonresident student who resides in Washington and is the child of a full-time certificated or classified employee of Vancouver Public Schools will ~~If the student is a child of a full-time certificated or classified school employee, the student shall~~ be permitted to enroll at the choice school to which the employee is assigned, as outlined in Procedure 3141, Nonresident Students.

V. Appeal

A student who has not been selected may request in writing a reconsideration of his or her application. The request for reconsideration shall be directed to the appropriate executive director and then appealed to the superintendent/designee.

VI. Choice Schools and Programs Transportation

The district will provide transportation for ~~in-district~~resident students only.

Elementary School: Transportation will be provided from the student’s bus stop to the student’s choice school.

Middle and High School: Transportation will be provided from the student's bus stop to the student's home school and then to the site, so long as it is economically feasible or unless extraordinary situations develop. At the end of the school day, the district will transport the student from the site to the student's home school, but not to the student's bus stop, except for students of VSAA and iTech.

Transportation is provided for students enrolled in half-day choice school or programs.

VII. New Choice Schools and Programs

A. Vancouver Public Schools’ staff members may make a recommendation for a new choice school or program to the superintendent or designee. The final decision of adding or removing a choice school or program rests with the board of directors. The following information about the choice school or program shall be submitted:

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1. The educational vision;
2. Connection to the overall district or school vision;
3. Alignment with approved district curriculum;
4. How the district initiatives, priorities, and mission and vision statements will be promoted;
5. Application of the district's equity lens;
6. How district and Washington state academic content standards will be addressed;
7. Assurance of conformity to state and federal law;
8. Data indicating the need and how the school or program will improve student learning;
9. Similar school/programs that have been researched;
10. Proposed sequence of identified courses;
11. Proposed enrollment capacity;
12. Expected student outcomes;
13. Staff and advisory committee members;
14. Choice schools and programs coordinator and central office liaison;
15. Proposed timeline for development and implementation;
16. Estimated ongoing costs; and
17. Impact on other schools, courses, or programs, i.e., would the adoption of the proposed choice school or program replace other courses or affect them negatively?

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APPROVED:

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Dr. Jeff Snell, Superintendent
Vancouver Public Schools

Date

(DRAFT 07-29-24)

Procedure – Resident Students, District Attendance Areas, and Intra-District Boundary Exceptions

The term "parent" as used in this procedure means a parent, guardian or a person having legal custody of a child. If the student is eighteen (18) years or older, or is legally emancipated, the procedures for the parent in this procedure may be exercised by the student.

Parents will be informed annually of the district's attendance area transfer option. The district will make available for public inspection the Office of the Superintendent of Public Instruction's annual information booklet on enrollment options in the state at each school building, the central office and local public libraries. This information will also be available on the website of the Office of the Superintendent of Public Instruction.

I. Attendance Area

A. Enrollment Projection and Attendance Area Changes

1. By mid-June of each school year, the next year's estimated enrollment should be forecast for each attendance area. When estimated enrollments substantially exceed class size guidelines, changes in attendance area boundaries may be proposed in order to operate an effective and efficient educational program during the following year. The following factors shall be considered when the district develops attendance area boundaries:

   a) Board resolutions and mission and vision statements;

   b) Collective bargaining agreements and other mandates on student to teacher ratio;

   c) Maintenance or improvement of curriculum and instructional programs;

   d) Reduction of dependency on portable classrooms;

   e) Fiscal accountability;

   f) Revision of unclear boundaries resulting from new developments (See C. below);

   g) Adjustment of class enrollment to relieve overcrowding within available space and funding;

   h) Maximum transportation efficiency;

   i) Impact of special programs on school capacity;

   j) Maintenance of established neighborhood groupings;

   k) Maximum safety of students walking to school;

   l) Use of natural and man-made barriers where possible;

   m) Compatibility with future building plans and anticipation of future enrollment growth;

   n) Within the context of all criteria and long-term planning, minimize the disruption to children as much as possible; and

   o) Application of the district's equity lens.

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2. Prior to the implementation of any attendance area change, parents of students involved in such planned transfer shall be invited to a meeting at which the planned change shall be explained and discussed.

3. The district reserves the right to base final decisions on the needs of all schools and students in the district. When fall enrollments in an attendance area substantially exceed class size guidelines, students may be required to attend a school outside their regular attendance area.

B. Student Residency

1. Students residing within Vancouver Public Schools' district boundaries shall attend the school that serves their respective residential area unless individual requests for boundary exceptions have been approved or, for a student who is eligible for special education pursuant to Washington Administrative Code Chapter 392-172A, whose special education placement is not at the school that serves the student's residential area.

2. A student's residence means the physical location of a student's principal abode, i.e., the home, house, apartment, facility, structure, or location, etc. where the student lives the majority of the time. The following shall be considered in applying this section: (a) the mailing address of the student, e.g., parent's address or post office box, may be different than the student's principal abode; (b) the student's principal abode may be different than the principal abode of the student's parent(s); and (c) the lack of a mailing address for a student does not preclude residency under this section (WAC 392-137-115).

3. When a student who is eligible for special education pursuant to Washington Administrative Code Chapter 392-172A transfers from a resident school district to a non-resident school district, the non-resident district shall be deemed the resident district for the purposes of special education. The non-resident district accepting the student will perform all legal duties otherwise required by the resident district, including the transportation of the transferring student, if so required, as a related service.

C. New Developments

Notwithstanding A and B above, in the event that new residential developments are projected to generate twenty-five (25) or more students within six months from the date their certificates of occupancy are issued, and one or more schools in the attendance area is declared to be at capacity, the students in that residential development may be required to attend another district school or schools in which space is available. In such case, the district will provide transportation for the students.

II. Intra-District Boundary Exception Requests

A. A parent's request for a student to attend a school other than the one located in their residential area shall be submitted to the office of student welfare and attendance. The principal of the requested school will accept or deny the boundary exception (also called a "transfer") in accordance with the procedures below. If the boundary exception request is denied, the principal will notify the parent in writing of the reason(s) for denial and inform the parent of their right to appeal the district's denial decision to the office of student welfare and attendance.

B. Boundary exception requests must be granted if:

1. One of the following conditions exist:

a) A special hardship or detrimental condition affecting the student or the student's immediate family which would be alleviated as a result of the boundary exception, including but not limited to a financial, educational, safety, or health condition affecting the student would be reasonably improved as a result of the boundary exception;

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b) Attendance at another school in the district is more accessible to the parent's place of work or to the location of child care;

c) Parents of a student who will be changing residence from one attendance area to another may request, with appropriate documentation, a boundary exception for a child to attend a school prior to the family moving into the attendance area;

d) Parents of students whose place of residence changes within the school year may request a boundary exception for their child to continue at the student's original school. The principal will allow students to finish the academic term or school year if the parent makes such a request to the principal and the student's attendance and tardiness record is satisfactory; or

e) If the student is a child of a full-time certificated or classified school employee, the student shall be permitted to enroll at the school to which the employee is assigned, at a school forming the K-12 continuum where the parent is assigned, or at a school in the district that provides early intervention services pursuant to RCW 43.216.580 and/or preschool services pursuant to RCW 28A.155.070, if the student is eligible for such services.

2. Space is available:

a) Applications will be considered on a stringent space-available and first come, first serve basis;

b) If there are space limitations, priority will be given to students currently on boundary exceptions over new requests for boundary exceptions; and

c) In the event there is not space available in the grade level, class or program requested, the student(s) will be placed on a waiting list in the order of the request.

And,

3. The student's disciplinary record is satisfactory and does not indicate a history of convictions for offenses, violence, or disruptive behavior.

C. Consideration of a student's disciplinary record.

1. If all other conditions in II(B) sections 1 and 2 are met, an intra-district boundary exception request must be granted even if a student has a disciplinary record or a history of convictions for offenses, violence, or disruptive behavior but appropriate behavior supports and interventions can be provided at the school to which the student is requesting to transfer. The request may be denied if there is good reason to believe that the student's disciplinary and behavioral issues will be significantly reduced by implementing behavior supports and interventions at the home school.

2. The principal of the requested school will follow the following process when determining whether to accept or deny an intra-district boundary exception request based on a student's disciplinary record:

a) Document the disciplinary and behavioral issues giving rise to concerns about approving the boundary exception request; and

b) The principal and a representative of student welfare and attendance will review the boundary exception request, the principal's concerns, and consider the following questions:

i. What are the likely and potential academic and nonacademic benefits to the student in attending the requested school (i.e., approving the boundary exception request)?

ii. What are the likely, potential, and unintended academic and nonacademic effects to the student of denying the boundary exception request and attending the home school?

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iii. What are the disciplinary and behavioral issues of concern? What effect does the principal anticipate that the student would have on other students and staff at the requested school and what is the basis for these concerns? Is there good reason to believe that these disciplinary and behavioral concerns would not also be present, or that the effect to other students and staff would not be as significant, at the student's home school?

iv. What behavioral supports and interventions have been previously attempted with the student? What behavioral supports and interventions could be attempted to address the principal's concerns? What, if any, additional training for school staff or other supports from the district may assist in addressing the disciplinary and behavioral concerns?

c) The principal and a representative of student welfare and attendance will determine whether to approve or deny the boundary exception request.

d) Any denial requires additional approval from the appropriate executive director.

e) The parent must be provided written notice as described in II(A).

C. Requests are approved on an annual basis and carry no expectation of future enrollment. However, renewal of a boundary exception will be granted for the following school year as long as space is available and the boundary exception has not been revoked. In addition, the following limitations apply on the denial of requests for boundary exceptions:

1. If the student is in a ~~district magnet program~~school or program of choice, the boundary exception shall be granted so long as the student remains in the ~~magnet program~~school or program of choice and meets the other requirements of this procedure;

2. If the student is a child of a full-time certificated or classified school employee and enrolled at the school to which the employee is assigned or at a school forming the K-12 continuum where the parent is assigned, the student shall be permitted to remain enrolled at that school or in the district's K-12 continuum until the student has completed their schooling;

3. Students on a boundary exception, who complete the fourth (4th) grade, seventh (7th) grade or eleventh (11th) grade will be permitted to finished their final year, at their assigned school, as long as the boundary exception has not been revoked and there is space available;

4. No student will be required to attend more than two (2) different high schools during the student's educational career because of district-initiated attendance area adjustments; and

5. No student will be required to attend more than two (2) different middle schools during the student's educational career because of district-initiated attendance area adjustments;

D. The principal of the currently-assigned school will consult with the principal of the school to which the student desires to transfer regarding the following:

1. Whether space is available in the grade level or classes at the building in which the student desires to be enrolled;

2. If applicable, whether appropriate educational programs or services are available to improve the student's condition as stated in requesting the boundary exception request;

3. Whether the student's transfer is likely to create a risk to the health or safety of other students or staff at the new building; and

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4. Whether the student receives special education or has a Section 504 plan, in which case the principal of the school to which the student desires to transfer must notify the special services department. If the transfer may affect the student's special educational placement, the student's IEP team shall determine the special education placement.

E. Athletic participation is not a valid reason for a request for a boundary exception. The Washington Interscholastic Activities Association (WIAA) prohibits athletic participation as a valid reason for enrolling in a school outside of a student's home attendance area.

F. A new boundary form is required for students in a dual language/immersion and highly capable/challenge program, if the student is changing schools. A new boundary form is also required for students entering sixth (6th) or ninth (9th) grades.

G. The following priority applies in the event of district-initiated attendance area changes where ~~in-district~~resident students request boundary exceptions to remain at their former schools and the boundary exceptions exceed the space available. Students who reside in the attendance area formerly designated as the attendance area for the school to which the student requests a boundary exception shall have priority for one (1) year over students requesting a boundary exception to attend their former school where they attended by a boundary exception.

H. A student who wants to continue and/or participate in an educational program that is unique to a school (i.e., foreign language, accelerated studies, ~~magnet, and~~school or program of choice, dreamers, and challenge) may be considered for a boundary exception and/or dual enrollment. A student shall not be released or accepted to take a course or program at another school when an equivalent course or program is offered at the student's residence school.

I. Transportation to the requested school is the responsibility of the parent.

J. Revocation of Intra-District Boundary Exception:

1. An intra-district boundary exception may not be revoked during the school year unless there are exceptional circumstances. Exceptional circumstances include:

   a) A record of attendance (including absences and tardiness) that has a significant negative effect on the student's education and there is good reason to believe this will be remedied by the student returning to their home school.

   b) A risk to the health or safety of other students or staff at the new building and there is good reason to believe that this risk will be mitigated by the student returning to their home school.

2. The procedures for revocation of intra-district boundary exception are as follows:

   a) The principal must consult with and receive approval from the executive director who supervises the school to initiate the revocation process. The principal and executive director must consider alternatives to revocation of the boundary exception.

   b) If the executive director approves initiating the revocation process, the principal must issue a written warning to the parent at least 20 school days before the potential revocation. The warning must clearly state the reason(s) for the potential revocation and provide an opportunity to remedy the concern.

   c) If the concern has not been remedied, the principal and executive director must determine the date that the revocation of the boundary exception will be effective. The principal must issue written notice to the parent that clearly states this date and the notice must be issued at least 5 school days before the revocation is effective.

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d) The principal must submit a copy of the written warning and written notice of revocation to the office of student welfare and attendance at same the time these notices are provided to the parent.

3. No student may have a boundary exception revoked if the district has an obligation to or is in the process of evaluating a student's eligibility under the Individuals with Disabilities Education Act or Section 504 of the Rehabilitation Act

III. False Information

If a building principal discovers that a false address or other information has been given on a student's registration form or boundary exception request and that the student in fact resides outside the attendance area, the principal shall notify the parent in writing that a boundary exception request must be submitted and approved for the student's enrollment to continue. A copy of the boundary exception request must be submitted to the office of student welfare and attendance within fourteen (14) days of receipt of the letter. The boundary exception request will be considered in accordance with this procedure. Failure to submit a boundary exception request will be grounds for withdrawing the student from the school.

IV. Appeal of Denial of an Intra-District Boundary Exception.

Appeals of a principal's denial or revocation of boundary exceptions for students residing within Vancouver Public Schools will be directed to the office of student welfare and attendance, (360) 313-1330, except for denials based on space availability, in which case the principal's decision is final.

V. Release of Resident Student ~~Who Resides in District~~

A. Decision Making for Release of Resident Students ~~Who Reside in District~~

1. The release of students residing within Vancouver Public Schools' boundary to enroll in a non-resident district shall occur when a situation exists which warrants such action, and the non-resident district agrees to accept the students.

2. A student who resides within the boundaries of the district shall be released to attend school in another district that agrees to accept the student if:

a) A financial, educational, safety or health condition affecting the student would be reasonably improved as a result of the transfer pursuant to WAC 392-137-135; or

b) Attendance at the school in the non-resident district is more accessible to the parent's place of work or to the location of child care pursuant to WAC 392-137-140; or

c) There is some other special hardship or detrimental condition affecting the student or the student's immediate family, which would be alleviated as a result of the transfer pursuant to WAC 392-137-145. Special hardship or detrimental condition includes, but is not limited, to any of the following:

i) A student who has dropped out of high school for six (6) weeks or longer, or has returned from participation in a substance abuse treatment program, or is about to become or is a teen parent, or has returned from hospitalization due to a mental health problem may be released to attend any other high school in the state provided the student is accepted by the non-resident high school.

ii) A student who was enrolled the previous school year in a non-resident district that is scheduled to complete the highest grade offered in the same non-resident district during the next school year.

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iii) A student who has completed two or more school years in a non-resident district without a release but with the knowledge of such non-resident attendance by the superintendent or any member of the board of directors of the resident district.

Or,

d) Parents have signed a contract to buy or build or rent a residence in another district and request that their students be released so they may be enrolled in the district where the family expects to become residents.

B. Procedures for Release of Students

1. Requests to release students from Vancouver Public Schools to enroll in another district shall be made in writing to the office of student welfare and attendance.

2. The superintendent or designee will determine whether the request for release is granted or denied based on the decision-making criteria above. If the request to release is denied, the superintendent or designee will notify the parent or guardian, in writing. The notification will include the reason(s) for denial and inform the parent or guardian of their right to appeal the district's denial decision to the Office of the Superintendent of Public Instruction (OSPI) or designee as detailed in RCW 28A.225.230.

VI. Appeal of Denial of Release of a Resident Student

Appeals of a denial of the release of a resident student to attend a different district shall be submitted to the Office of Administrative Hearings 600 University St., Suite 1500, Seattle, Washington, 98101-3126, (Fax No. 206-587-5135), in accordance with WAC 392-101-001 through 392-137-195.

~~VII. Immersion/Dual Language Programs~~

~~A. Applicants for the immersion/dual language classrooms will be selected by a lottery process that accepts students on a space available basis, beginning with the students who live in the attendance area of the school in which the program is located.~~

~~B. If there are more applicants than spaces available in the classroom, a wait list based on the student's residence will be created with three categories to prioritize admission:~~

~~1. Students who reside in the school's attendance area where the program is located;~~

~~2. Vancouver Public Schools students who reside outside the attendance area of the school where the program is located; and~~

~~3. Non-Vancouver Public Schools students who reside in Washington.~~

~~C. A student applying after the lottery has been held will be placed in the last position of their residence category.~~

~~D. The appeal process in Paragraph VI above does not apply to the immersion/dual language programs.~~

APPROVED:

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Dr. Jeff Snell, Superintendent
Vancouver Public Schools

Date

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Procedure – Student Dress

I. Determination of Student's Dress and Grooming Standards

The student and parent may determine the student's personal dress and grooming standards, provided that the student's dress and grooming does not:

A. Lead school officials to reasonably believe that such dress or grooming will disrupt, interfere with, disturb, or detract from the school environment or activity and/or educational objectives;

B. Create a health or other hazard to the student's safety or to the safety of others;

C. Create an atmosphere in which a student, staff, or other person's well-being is hindered by undue pressure, behavior, intimidation, overt gesture or threat of violence; or

D. Imply gang membership or affiliation by written communication, marks, drawing, painting, design or emblem upon any school or personal property or one's person.

II. Regulation of Student Dress and Grooming

A. The principal, in connection with the sponsor, coach, or other person in charge of an extracurricular activity, may regulate the dress and grooming of students who participate in the activity if the principal reasonably believes that the student's dress or grooming:

1. Creates a hazard to the student's safety or to the safety of others; or

2. Will prevent, interfere with or adversely affect the purpose, direction, or effort required for the activity to achieve its goals.

B. If the student's dress or grooming is objectionable under these provisions, the principal will request that the student make appropriate corrections. If the student refuses, the principal will notify the parent, if reasonably possible, and request that the parent make the necessary correction. If both the student and parent refuse, the principal will take appropriate action, which may include discipline. Students may be suspended, if circumstances so warrant. Students who violate provisions of the dress code relating to extracurricular activities may be removed or excluded from the extracurricular activity for such period as the principal may determine. All students will be accorded due process safeguards before any discipline may be taken.

C. Students identified as being gang involved, influenced or affiliated will be provided assistance and/or programs which discourage gang involvement or affiliation, enhance self-esteem, encourage interest and participation in school or other positive activities and promote membership in authorized school organizations.

II. Student Dress for Physical Education

A. The district's physical education program promotes the benefits of a physically active lifestyle and helps students develop skills to engage in lifelong healthy habits. It is essential that every student has the opportunity to safely and actively participate in the physical education

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curriculum. Students may dress in footwear and clothing allowable under this procedure and suitable for all scheduled physical education activities.

B. Building principals may choose to adopt a physical education uniform. Students will be encouraged to wear the uniform for all physical education activities.

C. Schools that adopt a physical education uniform shall accommodate students so that the uniform is not an unfair barrier to participation in physical education. Uniform accommodations are intended to support inclusive physical education practices and address a variety of student needs, including but not limited to a student's sincerely held religious beliefs, disabilities, cultural practices, and personal comfort. Schools that adopt a physical education uniform will provide assistance to any student for whom the cost presents a financial barrier.

D. A student's grade may not be adversely affected because the student failed to wear a physical education uniform or dress down for physical education activities.

APPROVED:

_____ _____

Jeff Snell~~Dr. Steven Webb~~, Superintendent Date
Vancouver Public Schools

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